AS TO THE ADMISSIBILITY OF

Application No. 30985/96
by Glavno Myuftiistvo (Chief Mufti Office),
Fikri HASAN, Fehmi SYULEIMAN, and Ismail CHAUSH
against Bulgaria

The European Commission of Human Rights sitting in private on 8 September 1997, the following members being present:

Mr. S. TRECHSEL, President
Mrs. G.H. THUNE
Mrs. J. LIDDY
MM. E. BUSUTTIL
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H. DANELIUS
F. MARTINEZ
C.L. ROZAKIS
L. LOUCAIDES
J.-C. GEUS
M.P. PELLONPÄÄ
M.A. NOWICKI
I. CABRAL BARRETO
B. CONFORTI
N. BRATZA
I. BÉKÉS
J. MUCHA
D. SVÁBY
G. RESS
A. PERENIC
C. BÎRSAN
P. LORENZEN
K. HERNDL
E. BIELIUNAS
E.A. ALKEMA
Mrs. M. HION
MM. R. NICOLINI
A. ARABADJIEV

Mr. H.C. KRÜGER, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the application introduced on 22 January 1996 by Glavno Myuftiistvo (Chief Mufti Office), Fikri HASAN, Fehmi SYULEIMAN, and Ismail CHAUSH against Bulgaria and registered on 11 April 1996 under file No. 30985/96;

Having regard to the reports provided for in Rule 47 of the Rules of Procedure of the Commission;

Having deliberated;

Decides as follows:

THE FACTS

The application is brought by the Chief Mufti Office (Glavno muftiistvo) of the Bulgarian Muslims ("the first applicant"), and by three individuals. Mr. Fikri Sali Hasan ("the second applicant") was

elected Chief Mufti (Glaven muftia) of the Bulgarian Muslims in 1992, the fact whether he still holds this position being disputed. He is a Bulgarian national born in 1963 and residing in Sofia. He claims that he represents the first applicant in his capacity of Chief Mufti.

The other two individual applicants are Mr. Fehmi Iavash Syuleiman ("the third applicant"), a Bulgarian national born in 1940 and residing in Sofia, a Muslim believer, and Mr. Ismail Ahmed Chaush ("the fourth applicant"), a Bulgarian national born in 1940, an islamic teacher residing in Sofia.

Before the Commission all applicants are represented by Mr. Yonko Grozev, a lawyer practising in Sofia.

The facts of the case as submitted by the applicants may be summarised as follows.

A. Particular circumstances of the case

Background of the case

Following the beginning of the democratisation process in Bulgaria at the end of 1989, some Muslim believers and activists of the Muslim religion in the country sought to replace the leadership of their religious organisation. They considered that Mr. N.G., who was the Chief Mufti at that time, and the members of the Supreme Spiritual Council (Vissh duhoven savet) had collaborated with the communist regime between 1984 and 1989, when it forcefully imposed Bulgarian names on ethnic Turks. The old leadership, with Mr. N.G. as Chief Mufti of the Bulgarian Muslims, also had its supporters. This situation caused divisions and internal conflict within the Muslim community in Bulgaria.

On 10 February 1992 the Directorate of Religious Denominations (Direktzia po veroizpovedaniata), a governmental agency at the Council of Ministers, acting pursuant to Section 12 of the Religious Denominations Act (Zakon za izpovedaniata), as in force at the time, declared that the election of Mr. N.G. as Chief Mufti of the Muslims in Bulgaria had been null and void and proclaimed his removal from this position. On 21 February 1992 the Directorate registered a three-member Interim Spiritual Council as a temporary governing body of the Muslims' religious organisation, until the election of a permanent new leadership by a national conference of all Muslims.

Following these events Mr. N.G., who claimed that he remained the Chief Mufti of the Bulgarian Muslims, challenged the decision of 10 February 1992 before the Supreme Court. On 28 April 1992 the Supreme Court rejected his appeal. The Court found that the decision of the Directorate of Religious Denominations was not subject to judicial appeal. The ensuing petition for review, submitted by Mr. N.G. against the Supreme Court's decision, was examined by a five-member Chamber of the Supreme Court. On 7 April 1993 the Chamber dismissed the petition. While confirming the rejection of Mr. N.G.'s appeal, the Chamber also discussed the merits of the appeal. It found inter alia that the Directorate's decision to declare Mr. N.G.'s election null and void had been within the competence of the Directorate under Section 12 of the Religious Denominations Act. Insofar as the impugned decision had also proclaimed "the removal" of Mr. N.G. from his position of Chief Mufti, this had been beyond the competence of the Directorate. However, it was unnecessary to declare the nullity of this part of the Directorate's decision as in any event it had no legal consequences.

The National Conference of Muslims, organised by the interim leadership, took place on 19 September 1992. It elected the second applicant as Chief Mufti of the Bulgarian Muslims, eight members of the Supreme Spiritual Council, and also approved a new Statute of the Religious Organisation of the Muslims in Bulgaria (Ustav za duhovnoto

ustroistvo i upravlenie na miusiulmanite v Balgaria). On 1 October 1992 the Directorate of Religious Denominations registered the Statute and the new leadership pursuant to Sections 6 and 16 of the Religious Denominations Act.

Events of 1994 and at the beginning of 1995

While the leadership dispute between Mr. N.G. and the second applicant continued, the official position of the Directorate of Religious Denominations, throughout 1993 and at least in the first half of 1994, remained that the second applicant was the legitimate Chief Mufti of the Bulgarian Muslims.

On 29 July 1994 the Directorate of Religious Denominations wrote a letter to the second applicant urging him to organise a national conference of all Muslims to solve certain problems arising from irregularities in the election of local religious leaders, in the local chapters. The irregularities in question apparently concerned alleged inconsistencies with the internal statute of the Muslim religious organisation, and not breaches of the law.

On 2 November 1994 the supporters of Mr. N.G. held a national conference. The conference proclaimed itself the legitimate representative of the Muslim believers, elected an alternative leadership and adopted a statute. After the conference the newly elected rival leaders applied for registration at the Directorate of Religious Denominations, claiming that they were the legitimate leadership of the Muslims in Bulgaria.

On 3 January 1995 the Supreme Spiritual Council presided over by the second applicant decided to convene a national conference on 28 January 1995.

On 16 January 1995 the Directorate of Religious Denominations wrote a letter to the second applicant in his capacity of Chief Mufti. The letter stated inter alia that under Section 9 of the Religious Denominations Act every religious denomination in the country was under the obligation to have a leadership for contacts with the State. However, because of the irregularities concerning the local chapters of the Muslim religious organisation, its leadership was not functioning in conformity with the statute of the Muslim religious organisation. The letter stated further:

<Translation>

"As the Directorate of Religious Denominations was concerned with these irregularities as early as in the middle of 1994, it repeatedly ... urged the rapid resolution of the problems ... Unfortunately no specific measures had been undertaken ... As a result the conflicts in the religious community deepened, and the discontent among the Muslims rose, which led to the holding of an extraordinary national conference on 2 November 1994. This brought to light a new problem, related to the shortcomings of the statute of the Muslim religious community... [The statute] does not clarify the procedure for convening a national conference ... The issues concerning the participants, and the manner in which they are determined ..., are not regulated.

Therefore, for the executive branch of the State it becomes legally impossible to decide whether the national conference is in conformity with the statute [of the Muslim religion] and, accordingly, whether its decisions are valid. These decisions, quite understandably, could be challenged by part of the Muslims in Bulgaria. Any other national conference, except if it were organised by a joint committee [of the rival leaderships], would raise the same problem. Moreover, the decision of 3 January

1995 of the Supreme Spiritual Council to hold an extraordinary national conference on 28 January 1995 is signed only by six legitimate members of the Spiritual Council... [and] ... cannot be regarded as being in conformity with the statute.

The Directorate of Religious Denominations cannot disregard the findings of the [Chamber of the] Supreme Court in its decision of 7 [April] 1993. It is mentioned therein that the Directorate had acted beyond its competence when removing Mr. N.G. from his position of Chief Mufti and that the decision of the Directorate of 10 February 1992 could not have legal consequences.

Extremely worried as regards the current situation and deeply concerned over the well-being of the Muslims in Bulgaria, the Directorate of Religious Denominations supports the opinion of the Chief Mufti, [the second applicant], that it is not advisable to hurry with the holding of an extraordinary conference before overcoming the conflicts in the religious community ...

Firmly convinced that the disputed questions in the religious community should not be decided by administrative means by the executive branch of the State ... the Directorate appeals to you to make proof of good will and reach consensus for the holding of a united conference ..."

On 27 January 1995 the Supreme Spiritual Council presided over by the second applicant announced that it had postponed the holding of the national conference to 6 March 1995.

Removal of the second applicant from his position of Chief Mufti

On 22 February 1995 the Deputy Prime Minister of Bulgaria Mr. Shivarov issued Decree No. P-12 which read as follows:

<Translation>

"Based on Decree KV-15 of 6 February 1995 of the Council of Ministers in conjunction with Section 6 of the Religious Denominations Act, I approve the statute of the Muslim religion in Bulgaria, based in Sofia."

The statute of the Muslim religion in Bulgaria mentioned in the decree was apparently the one adopted at the rival national conference, organised by Mr. N.G. and held on 2 November 1994. Decree KV-15, referred to in the decision, apparently concerned the authorisation given by the Council of Ministers to its Deputy Prime Minister, as required under Section 6 of the Religious Denominations Act (see below Relevant domestic law).

On 23 February 1995 the Directorate of Religious Denominations at the Council of Ministers issued a decision which stated that based on Sections 6, 9 and 16 of the Religious Denominations Act and Decree P-12 of the Deputy Prime Minister, it had registered a new leadership of the Bulgarian Muslim community. The leadership thus registered included Mr. N.G. as president of the Supreme Spiritual Council and, apparently, those elected at the conference of 2 November 1994.

Neither Decree P-12, nor the decision of the Directorate of Religious Denominations gave any reasons, nor any explanation as regards the procedure followed. The decisions were not formally served on the applicants, who learned about them from the press.

On 27 February 1995 the newly registered leadership of the Muslim community accompanied by private security guards entered the headquarters of the Chief Mufti Office in Sofia, forcefully evicted the

staff working there, and occupied the building. The applicants submit that the police, who arrived after the surprise action, immediately stepped in to protect the new occupants of the building. Following the action of 27 February 1995 the new leadership took over all documents and assets belonging to the religious organisation of the Bulgarian Muslims in Sofia and, in the months which followed, in various other towns in the country. The Directorate of Religious Denominations allegedly sent letters to the banks where the Muslim religious organisation had its accounts, informing them of the change of leadership. In the following weeks several municipalities, allegedly upon the instructions of the Directorate, registered new regional Muftis. Also, the staff of the Chief Mufti Office and ten islamic teachers, the fourth applicant among them, were allegedly dismissed. The applicants have not substantiated any further details as regards the alleged dismissals, such as their dates, the organs who ordered them, or the procedure followed.

On 27 February 1995, immediately after the take-over, the second applicant submitted to the Chief Public Prosecutor's Office (Glavna prokuratura) a request for assistance, stating that there had been an unlawful mob action and that the persons who occupied the building of the Chief Mufti Office were squatters who had to be evicted. By decisions of 8 and 28 March 1995 the prosecution authorities refused the request. They found inter alia that the new occupants of the building had legal grounds to stay there as they were duly registered by the Directorate of Religious Denominations, and represented the religious leadership of the Muslim community in the country.

Appeal to the Supreme Court against Decree P-12

On 23 March 1995, apparently in reply to a request from the second applicant, the Directorate of Religious Denominations wrote to him, in his capacity of a private person, a letter which stated inter alia:

<Translation>

"The Muslim religious community in Bulgaria ... has, in 1888, 1891, 1919, 1949, 1986, 1992 and 1995, repeatedly changed its statute as concerns its organisational structure ..., but never as regards its religious foundation. Decree P-12 of 22 February 1995 ... sanctions an [organisational] change, which the religious community itself wished to undertake ..."

This letter was apparently the first document originating from the competent State bodies which implied clearly that the statute of the Muslim religious community approved by Decree P-12 had replaced the previous statute and that the registered new leadership had replaced the second applicant.

On 18 April 1995 the second applicant, acting on behalf of the Chief Mufti Office, lodged with the Supreme Court an appeal against Decree P-12. He stated that on its face Decree P-12 stipulated nothing more than the registration of a new religious organisation. However, from the decisions and the letter of the Directorate of Religious Denominations which had followed, it had become clear that what was done was the replacement of the statute and the leadership of an existing religious denomination. Furthermore, it transpired that the motivation behind this act had been the understanding that the Muslim religion in Bulgaria could have only one leadership and one statute. The State did not have the right to impose such view on the Muslims, multiple religious organisations of one and the same religion being a normal practice in other countries, as well as in Bulgaria. Therefore the Council of Ministers had acted beyond its powers. The State interference with the internal disputes of the religious community was unlawful. At the oral hearing held by the Court the second applicant also stated that there had been an unlawful interference with the

religious liberties of the Muslims, as enshrined in the Constitution.

The second applicant also submitted that the conference of 2 November 1994 had been organised by people outside the Muslim religious organisation presided over by him. Accordingly, they could register their own religious organisation but could not claim to replace the leadership of another. The second applicant asked the Court either to declare Decree P-12 null and void as contrary to the law or to declare that it constituted a registration of a new religious community, the existing Muslim organisation being unaffected.

On 27 July 1995 the Supreme Court dismissed the appeal. The Court apparently accepted the locus standi of the first applicant, as represented by the second applicant, and also found that it was competent to examine the lawfulness of the impugned Decree P-12.

On the merits the Court stated that under the Religious Denominations Act the Council of Ministers enjoyed full discretion in its decision as to whether or not to register the statute of a given religion. Therefore, the Court's competence was limited to an examination of whether the impugned act had been issued by the competent administrative organ and whether the procedural requirements had been complied with. In this respect Decree P-12 was lawful.

As regards the request for interpretation of Decree P-12, it was not open to the Court, in the framework of the particular proceedings, to state its opinion as to whether it had the effect of creating a new legal person, or introducing changes, and whether after this decision there existed two parallel Muslim religious organisations.

The national conference of 6 March 1995 and the appeal to the Supreme Court against the refusal to register its decisions

The national conference of the Muslims in Bulgaria organised by the second applicant took place as planned on 6 March 1995. The minutes of the conference establish that it was attended by 1553 persons, of whom 1188 were official delegates with voting rights. These were representatives of eleven local chapters and of the central leadership. The conference adopted some amendments of the statute of the Muslim community and elected its leadership. The second applicant was re-elected Chief Mufti.

On 5 June 1995 the second applicant, acting on behalf of the first applicant, submitted a petition to the Council of Ministers requesting the registration of the new statute and leadership of the Muslims in Bulgaria, as adopted by the conference of 6 March 1995. On 6 October 1995 the second applicant submitted a second petition. However, there was no response from the Council of Ministers.

On an unspecified date the second applicant submitted to the Supreme Court an appeal against the tacit refusal of the Council of Ministers to register the decisions of the March conference.

On 14 October 1996 the Supreme Court delivered its judgment. The Court noted that in 1992 the Chief Mufti Office, the first applicant, had been duly registered as a religious denomination under Section 6 of the Religious Denominations Act and had thus become a legal person. The Court also noted that the first applicant had not been deprived of legal personality pursuant to Section 6 para. 2 of the same Act. Therefore the Council of Ministers was under the obligation, pursuant to Sections 6 and 16 of the Act, to examine a request for registration of a new statute or of changes in the leadership in the existing religious denomination. As a result the Court decided that the tacit refusal of the Council of Ministers was unlawful and ordered the transmission of the file to the Council of Ministers, which had to examine it.

On 19 November 1996 Deputy Prime Minister Shivarov refused to register the 1995 statute and leadership of the Chief Mufti Office, the first applicant. He wrote to the second applicant a letter stating inter alia that the Council of Ministers had already registered "a leadership of the Muslim community in Bulgaria", which was the leadership elected by the November 1994 conference with Mr. N.G. as President of the Supreme Spiritual Council. The Deputy Prime Minister concluded that the first applicant's request "cannot be granted as it is clearly contrary to the provisions of the Religious Denominations Act".

On 5 December 1996 the second applicant, acting on behalf of the first applicant, appealed to the Supreme Court against the refusal of the Deputy Prime Minister.

On 13 March 1997 the Supreme Court quashed the refusal of the Council of Ministers to register the 1995 statute and leadership of the first applicant. Noting that this refusal was unlawful, the Supreme Court also stated that it violated Section 13 of the Constitution as it constituted "an interference and unlawful administrative intervention into the internal organisation of [a] religious community". The Court ordered again the transmission of the file to the Council of Ministers.

In a partially dissenting opinion the minority stated that the Supreme Court should not have returned the file, but should have decided on the merits of the request for registration.

On 24 March 1997 the second applicant again requested the Council of Ministers to register the 1995 statute and leadership.

B. Relevant domestic law and practice

1. The Constitution of 1991.

<Translation>

Section 13

"(1) The religions shall be free.

(2) The religious institutions shall be separate from the State.

(3) Eastern Orthodox Christianity shall be considered the traditional religion in the Republic of Bulgaria.

(4) Religious institutions and communities, and religious beliefs shall not be used to political ends."

Section 37

"(1) The freedom of conscience, the freedom of thought and the choice of religion and of religious or atheistic views shall be inviolable. The State shall assist in the maintenance of tolerance and respect among the believers of different denominations, and among believers and non-believers.

(2) The freedom of conscience and religion shall not be practised to the detriment of national security, public order, public health and morals, or of the rights and freedoms of others."

Decision No. 5 of the Constitutional Court of 11 June 1992 provides a legally binding interpretation of the above provisions. It states inter alia that the legitimate grounds for interference with one's freedom of religion as protected thereby cannot be subject to

extensive interpretations. An Act of Parliament can only determine the procedure for their enforcement.

2. The relevant provisions of the Religious Denominations Act, as in force at the time of the events at issue, read as follows.

<Translation>

Section 6

"(1) A religious denomination shall be considered recognised and shall become a legal person upon the approval of its statute by the Council of Ministers, or by a Deputy Prime Minister authorised for this purpose.

(2) The Council of Ministers, or a Deputy Prime Minister authorised for this purpose, shall revoke the recognition, by a reasoned decision, if the activities of the religious denomination breach the law, public order or morals."

Section 9

"(1) Every religious denomination shall have a leadership accountable to the State.

(2) The statute of the religious denomination shall establish its governing and representative bodies and the procedure for their election and appointment... "

Section 16

"(1) The national governing bodies of the religious denominations shall register with the Directorate of Religious Denominations at the Council of Ministers, and the local governing bodies with the local municipalities, and shall submit a list of the names of all members of these governing bodies".

The Act, which has been in force since 1949 with some amendments, also lays down other rules as regards the activities of a religious denomination, imposes requirements as regards its clergy and empowers the Directorate of Religious Denominations with certain control functions. On 11 June 1992 the Constitutional Court repealed some of its provisions which contravened the 1991 Constitution.

The applicants contend that as a consequence of the provisions of Section 6 of the Act, and since there is no public register for recognised religious denominations, in practice a religious community can establish its existence as a legal entity only by producing a copy of a letter or a decision to that effect, issued by the Directorate of Religious Denominations. The same applies to the leader of a religious denomination when he needs to prove his powers.

3. Under Decree No. 125 of the Council of Ministers of 6 December 1990, as amended, the competence of the Directorate of Religious Denominations includes "contacts between the State and the religions", assistance to central and local administrative authorities in solving problems which involve religious matters and assistance to religious organisations as regards education and publications.

4. There are no procedural provisions under Bulgarian law specifically applicable to the examination by the Council of Ministers, or by a Deputy Prime Minister, of a petition for authorisation of a religious denomination. The Administrative Procedure Act (Zakon za administrativnoto proizvodstvo), which contains a general legal regime on the procedure for the delivery of and appeal against administrative decisions, provides in its Section 3 that it is not applicable as regards the Council of Ministers' decisions.

5. Under Section 110 of the Law on Obligations and Contracts the general limitation period for civil claims is five years.

COMPLAINTS

1. The applicants complain under Article 9 of the Convention that there has been an interference with their religious liberties, the right of the believers and of the religious community to govern their own affairs and to choose their leadership being an important part thereof. The applicants also invoke Article 11 of the Convention in this respect. Also, they complain that contrary to Article 13 of the Convention they did not have an effective remedy.

The applicants contend that the measures undertaken by the State had the effect of replacing the statute and the leadership of the Muslim religion in Bulgaria. This was so because, following the registration of the rival leaders by the Directorate of Religious Denominations, no court, government body or indeed no person would recognise the second applicant as a legitimate representative of the Muslim religious community in Bulgaria. Moreover, this replacement was done through arbitrary decrees which gave no reasons and were issued without even informing the parties concerned. This State interference was neither prescribed by law, nor necessary in a democratic society. There were no clear legal grounds nor any reasonable legal criteria on the basis of which the State could favour one wing of the divided Muslim community to the detriment of another. This, combined with the unpredictable practice of the Directorate of Religious Denominations and with the "full discretion" doctrine adopted by the Supreme Court, amounts to complete arbitrariness.

The applicants further submit that they were not afforded any remedy providing at least basic procedural safeguards as regards the interference with their right to freedom of religion. Also, the prosecution authorities refused to intervene following the eviction on 27 February 1995 from the building of the Chief Mufti Office.

As regards the effects of the Supreme Court's judgments of 14 October 1996 and 13 March 1997, the applicants contend that those judgments did not change the situation in reality. In any event, even if registration is granted soon, the complaints about the events of 1995 - 1996 remain valid.

2. The applicants complain under Article 6 of the Convention that they did not have a hearing before a tribunal in the determination of their civil rights and obligations. Thus, the Supreme Court found that it was not competent to examine the merits of Decree P-12, which in turn was issued without observing any procedural safeguards, by a Deputy Prime Minister.

Among the civil rights determined by Decree P-12 and the Supreme Court's decision were the property rights of the first applicant, the right of the Muslim believers to association, the right of the second applicant to hold his position of Chief Mufti, and his and the other applicants' rights under employment contracts. Thus, the second applicant had an employment contract as Chief Mufti, based on his election in 1992. This legal basis was destroyed by the impugned decisions, which had the effect of replacing the Muslim religious leadership registered in 1992. Also, many other persons working for the Muslim religious community were dismissed by the new Chief Mufti.

3. The applicants complain under Article 1 of Protocol No. 1 to the Convention that they were deprived of their possessions and under Article 13 that they did not have an effective remedy in this respect. The applicants submit that the possessions in question included inter alia the ownership of belongings and documents which they have not seen

since the eviction from the premises of the Chief Mufti's Office on 27 February 1995, the first applicant's right to use these premises, its money in bank accounts, and the other applicants' rights under employment contracts.

PROCEEDINGS BEFORE THE COMMISSION

The application was introduced on 22 January 1996 and registered on 11 April 1996.

On 24 February 1997 the Commission decided to communicate the application to the respondent Government.

On 22 April 1997 the applicants submitted additional information on their own motion. A copy of their submissions was transmitted to the respondent Government.

The time-limit for the Government's written observations expired on 2 May 1997. The Government have not requested its extension. By letter of 14 May 1997 the Government were reminded that they had not submitted observations. By letter of 24 June 1997 the Government were informed that the application was being considered for examination during the Commission's session beginning on 8 September 1997 although no observations had been received.

THE LAW

The applicants complain under Article 9 (Art. 9) taken alone and in conjunction with Article 13 (Art. 9+13) of the Convention that the impugned acts of the authorities amounted to an unlawful, arbitrary and unjustified interference with their religious liberties and that they did not have an effective remedy in this respect. The applicants invoke also Article 11 (Art. 11) of the Convention. The applicants further complain under Article 1 of Protocol No. 1 (P1-1) to the Convention, taken alone and in conjunction with Article 13 (P1-1+13), that they have been deprived of their possessions and that they did not have an effective remedy in this respect. They complain under Article 6 (Art. 6) of the Convention that they did not have a hearing on the merits before a tribunal in the determination of certain civil rights and obligations.

The Commission notes that the Government have not submitted written observations.

The Commission recalls the Convention organs' case-law according to which the parties must be invited to participate in the examination of the facts by the Commission, though such an examination cannot be hindered by the manner in which the parties in fact participate (cf. mutatis mutandis, No. 8007/77, Dec. 10.7.78, D.R. 13 p. 85; cf. also No. 22947 and 22948/93, Dec. 11.10.94, D.R. 79 p. 108).

Having examined the applicants' complaints, the Commission finds that they raise serious questions of fact and law which are of such complexity that their determination should depend on an examination of the merits. The application cannot, therefore, be regarded as manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention, and no other grounds for declaring it inadmissible have been established.

For these reasons, the Commission, by a majority,

DECLARES THE APPLICATION ADMISSIBLE, without prejudging the merits.

H.C. KRÜGER
Secretary

S. TRECHSEL
President

to the Commission of the Commission